

Court No. - 9

Case :- WRIT - C No. - 69361 of 2009

Petitioner :- Shri Sanjay Dadu

Respondent :- Pvvnl & Ors.

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Pankaj Kr. Shukla

Hon'ble Vijay Manohar Sahai,J.

Hon'ble Sudhir Agarwal,J.

We have heard B.C. Rai learned counsel for the petitioner and Shri Pankaj Kumar Shukla learned counsel appearing for respondents no.1 to 3. They are allowed one month time to file counter affidavit. Three weeks thereafter is allowed to the petitioner for filing rejoinder affidavit.

List thereafter.

It is contended that a checking was made on 1.10.2009 and at that very stage without there being any assessment, in accordance with law the checking team directed the petitioner to pay huge amount which was under duress. It is submitted that neither any assessment in accordance with law has been made nor the respondents otherwise are entitled to demand any amount from the petitioner. The petitioner was compelled to pay a sum of Rs.4,34,370/- towards assessment of theft of electricity pursuant to provisional assessment notice dated 1.10.2009.

Until further orders of this court, the effect and operation of impugned notice dated 1.10.2009 passed by respondents shall remain stayed. The respondents are further directed to restore the power connection to the petitioner within 24 hours. However, the petitioner shall go on paying regular monthly bills as when it falls due.

Order Date :- 22.12.2009

vs

Court No. - 21

Case :- WRIT - C No. - 69361 of 2009

Petitioner :- Shri Sanjay Dadu

Respondent :- Pvvnl And Ors.

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Pankaj Kr. Shukla

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

List on 1.3.2023 showing name of Sri Pranjal Mehrotra as counsel for the respondent electricity department.

Order Date :- 17.2.2023

Arif

(Syed Qamar Hasan Rizvi,J.) (Manoj Kumar Gupta,J.)

Court No. - 21

Case :- WRIT - C No. - 69361 of 2009

Petitioner :- Shri Sanjay Dadu

Respondent :- Pvvnl And Ors.

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Pankaj Kr. Shukla

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The instant petition has been filed praying for quashing of the Provisional Assessment Notice dated 01.10.2009 and Inspection Report dated 01.10.2009 and for a direction to the respondent to refund assessment amount of Rs. 2 lakhs and compounding charges of Rs.3.40 lakhs along with interest, realised from the petitioner.

Learned counsel for the petitioner tried to content that the impugned provisional assessment notice is not in accordance with the provisions of Section 126 of the Electricity Act, 2003 and Clause 8.1 of the U.P. Electricity Supply Code, 2005.

The perusal of the impugned assessment notice reveals that it is based on an inspection, wherein the petitioner was found extracting electric energy by making direct connection from a tube-well connection of some other persons.

The provisional assessment notice clearly discloses the duration of assessment and the manner in which computation was done.

Consequently, we are not ready to accept the contention that the provisional assessment notice is defective.

At this stage, learned counsel for the petitioner points out that the petitioner has already filed objection on 16.11.2009 against the provisional assessment notice, which has not been decided so far.

We **dispose of** the petition with direction to respondent no.2 to decide the objection by following the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.3.2023/Shivangi